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Case Name: *Kellie Karen Stafford v. Volkswagen Group of America Inc., et al.*

Case No.: 24CV449054

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Volkswagen Group of America, Inc. (“VWGoA” or “Defendant”) moves under Code of Civil Procedure Sections 2025.410 and 2025.450 to compel Plaintiff Kellie Karen Stafford (“Plaintiff”) to attend a deposition and produce documents at the deposition, and for monetary sanctions in the amount of \$2,035.00 against Plaintiff and her counsel of record, Strategic Legal Practices, APC, jointly and severally. Notice of Motion (the “Motion”) at 2:1-5 (filed: Oct. 8, 2025).

The Motion came on for hearing on June 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

This is a straightforward Motion for the Court to resolve.

After Defendant on July 23, 2025, properly noticed the deposition of Plaintiff for September 3, 2025 (Declaration of Alex G. Kalifeh in Support of Motion (“Kalifeh Decl.”) at ¶ 5 & its Ex. C, the “Notice of Deposition”), Plaintiff was *required* to show up and testify at this noticed deposition on September 3, 2025. C.C.P. §§ 2025.010, 205.240, 2025.280, 2025.450(a). This was not optional. But Plaintiff did not show up to testify at this noticed September 3, 2025 deposition. Kalifeh Decl. at ¶8 and its Ex. F (Certification of Non-Appearance).

Lest there be doubt, between July 23, 2025 when Defendant served this Notice of Deposition on Plaintiff, and the noticed September 3, 2025 deposition itself, Plaintiff never objected to this Notice of Deposition nor responded Defendant’s meet and confer correspondence with alternative deposition dates for Plaintiff. Kalifeh Decl. at ¶7. So in light of—

1. Plaintiff’s failure to object to this Notice of Deposition,
2. Plaintiff’s failure to respond with alternative deposition dates to the meet and confer correspondence between July 23, 2025 when the Notice of Deposition was served and the September 3, 2025 noticed deposition, and
3. Plaintiff’s failure to appear at the noticed deposition on September 3, 2025

—the Court finds and rules that Defendant was justified in filing this Motion to when it did on October 8, 2025 to compel Plaintiff’s deposition.

In Opposition, Plaintiff offers as an excuse that months after this Motion was filed on October 8, 2025, Plaintiff on January 9, 2026 offered February 19, 2026 for a deposition date, Plaintiff's deposition began on February 19, 2026, and Plaintiff has offered dates of June 5, 2026 and Jun 12, 2026 to complete Plaintiff's deposition. Declaration of Lara Abdo in Opposition to Motion ("Abdo Decl.") at ¶¶4-5. In a nutshell, Plaintiff argues that the Motion is moot because months after the Motion was brought Plaintiff decided to get around to offering dates to complete this noticed deposition. See Opp. at 1:21-23 ("As Plaintiff has offered June 5, 2026 and June 2026, for the completion of the deposition, this Motion is unnecessary [and] should be denied in its entirety.")

Plaintiff is wrong. Plaintiff belatedly getting around to providing deposition dates on which she promises to complete her deposition does not excuse her misconduct for failing to appear for the duly-noticed deposition on September 3, 2025.

And while her counsel represents that Plaintiff "remains willing" to proceed on June 12, 2026 to complete this deposition¹—a representation this Court will enforce—the attitude by Plaintiff and her counsel that this deposition of this party is optional, to be done when she is "willing" or feels like it, is *seriously mistaken*.

Accordingly, under the statutory authority granted by Code of Civil Procedure Section 2045.450(a), the Court **GRANTS** this Motion compelling Plaintiff Kellie Karen Stafford attendance and testimony at deposition. Specifically, the Court **ORDERS** Plaintiff Kellie Karen Stafford to appear and testify at deposition on Friday, June 12, 2026, at 9:00 AM.²

Regarding Defendant's request that Plaintiff produce documents at her deposition, Plaintiff will do so. The Notice that Defendant served on Plaintiff on July 23, 2025, contains 17 Requests for Production of Documents ("RFPs") that the Court has reviewed and which under Code of Civil Procedure Section 2025.220 specify with reasonable particularity the materials to be produced by Plaintiff at this deposition. Kalifeh Decl., Ex. C. Notably, between July 23, 2025 when this Notice of Deposition was served on Plaintiff and the September 3, 2025 noticed deposition date, Plaintiff never objected to these Code-Compliant RFPs—and was not at liberty to ignore them. So Plaintiff has the clear duty to provide Code-Compliant responses to these RFPs at her June 12, 2026 deposition—including producing all responsive, non-privileged documents to those 17 RFPs before or at these depositions.

Accordingly, the Court **ORDERS** Plaintiff Kellie Karen Stafford to provide Code-Compliant Responses and produce all non-privileged documents in her possession, custody, or control that are responsive to the 17 RFPs at her June 12, 2026 deposition.

¹ Abdo Decl. at ¶ 5

² Lest anyone protest that there is any unfairness whatever in compelling Plaintiff to complete her deposition on June 12, 2026, this is the exact date that Plaintiff's own counsel in her sworn Declaration has told the Court that Plaintiff "remains willing" to be deposed on. Abdo Decl. at ¶ 5.

Regarding Defendant's request for a monetary sanction, the Court has authority and discretion under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Plaintiff here for her misuse of the discovery process by failing to appear and testify at her noticed September 3, 2025, deposition and produce responsive documents at this September 3, 2025 deposition. "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added).

In Opposition, Plaintiff argues that "sanctions are unwarranted" because "Plaintiff appeared for her deposition on February 19, 2026, however it was not completed [and] Plaintiff's counsel offered June 5, 2026, and June 12, 2026 for completion of Plaintiff's deposition." Opp. at 2:16-19. In other words, Plaintiff argues that because she made a subsequent cure after this Motion was filed, sanctions should not be awarded.

Plaintiff is wrong again. Under the plain text of California Rule of Court 3.1348(a): "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." C.R.C. 3.1348(a). So even though Plaintiff arguably made a subsequent cure by months after this Motion was filed by starting her deposition and providing dates in June 2026 to complete it, the Court retains authority to address the appropriate amount of sanctions to impose against Plaintiff that Defendant *reasonably* incurred for filing this Motion on October 8, 2025. *Id.*; see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, at 408-409 ("once a party has failed to serve timely interrogatory responses, the trial court has the authority to hear a propounding party's motion to compel responses . . . regardless of whether a party [later] serves an untimely response[,] and going on to cite and quote Rule 3.1030(a), which in 2009 was renumbered as Rule 3.1348(a) *supra*, that the court may award sanctions even though the requested discovery responses were served after the motion was filed.)

In light of the plain text of Rule 3.1348(a), the Court agrees with Defendant that even though Plaintiff *after* this Motion was filed started her deposition and provided dates in June 2026 to complete it, the Court retains authority and discretion under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Plaintiff here: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And, lest there be doubt, the Court reads Section 2023.010(d) to mean that failing to *timely* "respond . . . to an authorized method of discovery" like a Notice of Deposition is a "misuse of the discovery process" (C.C.P. § 2023.010(d)) subject to a reasonable sanction under Section 2023.030(a).

Here, Plaintiff had no justification, let alone "substantial justification," in failing to appear and testify at her duly-noticed deposition on September 3, 2025. And because

Plaintiff had a duty to attend and testify at her September 3, 2025 deposition (*and* produce responsive documents to the RFPs at this deposition) but failed to do so, the Court finds and rules as a matter of logic and law that Defendant was justified in filing this Motion on October 8, 2025, to compel Plaintiff to testify and produce documents and this deposition.

Hence, while the Court here may and will award Defendant a monetary sanction paid by Plaintiff for Defendant's reasonable attorney's fees incurred for this Motion, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

For a sanction, Defendant seek a total of \$2,035.00, which equals 5.0 hours of attorney work at a billable rate of \$395.00 per hour (= \$1,975.00 in attorneys' fees) plus \$60.00 in costs for the filing fee for this Motion. Kalifeh Decl. at ¶ 8. In light of prevailing rates in the relevant market for the performance of counsel, the Court rules that this billable rate sought of \$395.00 is reasonable. But the number of 5.0 hours requested for this straightforward Motion filed on October 8, 2025 is unreasonable because this Motion is a layup. All Defendant had to do to win was point that it duly served on Plaintiff the Notice of Deposition with the RFP requests (it did); Plaintiff did not testify and produce documents at the September 3, 2025 noticed deposition (she did not); and California law requires Plaintiff to do so (it does). That reasonably should take able counsel for Defendant 2.0 hours total.

Accordingly, the Court **GRANTS** and awards Defendant a total monetary sanction against Plaintiff of **\$850.00**, which equals \$790.00 in reasonable attorneys' fees (= 2.0 hours x \$395.00 per hour) plus reasonable costs of \$60.00 for the filing fee for this Motion.

Conclusion & Order

Accordingly, Defendant's Motion is **GRANTED**. Specifically, the Court **ORDERS**:

1. Plaintiff Kellie Karen Stafford must appear and testify at her deposition on Friday, June 12, 2026, at 9:00 AM;
2. At her June 12, 2026 deposition, Plaintiff Kellie Karen Stafford must:
 - (a) provide Code-Compliant responses to the 17 RFPs served on July 23, 2025, in the Notice of Deposition, and
 - (b) produce to Defendant all responsive, non-privileged documents to those 17 RFPs; and
3. Within ten days from today, Plaintiff Kellie Karen Stafford must pay Defendant Volkswagen Group of America, Inc. a monetary sanction of **\$850.00** for Defendant's reasonable attorneys' fees and costs for this Motion.

Plaintiff Kellie Karen Stafford is put on **NOTICE** that if she fails to comply with this **ORDER** then Plaintiff Kellie Karen Stafford will be subject to further escalating sanctions, including monetary and non-monetary sanctions such as evidentiary, issue, and terminating sanctions.

SO ORDERED.

Date: June 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Michelle Bailey v. Alireza Hekmati*

Case No.: 25CV471487

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Alireza Hekmati (“Defendant”) moves to compel Plaintiff Michelle Bailey (“Plaintiff”) to provide verified responses without objections to Form Interrogatories, Special Interrogatories, and Request for Production of Documents (“RFPs”), and for sanctions to be imposed against Plaintiff and in favor of Defendant and its counsel in the amount of \$600.00. Notice of Motion (the “Motion”) at 1:23-27 (filed: Oct. 14, 2025).

The Motion came on for hearing on June 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

This is a simple, straightforward Motion for the Court to resolve.

On August 13, 2025, Defendant served the following Code-Compliant discovery requests on Plaintiff:

- Form Interrogatories, Set One;
- Special Interrogatories, Set One; and
- Requests for Production of Documents (“RFPs”), Set One.

Declaration of attorney Christopher Tuttle (the “Tuttle Decl.”) In Support of Motion at ¶ 2 & Ex. A thereto (filed: Oct. 14, 2025).

Under California law, Plaintiff has a clear duty to provide verified Code-Compliant responses to these discovery requests.

To be Code Compliant, Plaintiff’s verified responses must:

- For these Interrogatories (Form and Special) comply with Code of Civil Procedure Sections 2030.210 & 2030.220 by providing answers to each interrogatory that are as complete and straightforward as the information reasonably available to Plaintiff permits; C.C.P. §§ 2030.210 & 2030.220; *and*